

Court No. - 37

Case :- WRIT - A No. - 15140 of 2022

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vibhu Rai, Abhinav Gaur, Sr.
Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Pranjal Mehrotra

Hon'ble Mrs. Sangeeta Chandra, J.

Heard learned counsel for the petitioner and Shri Abhishek Srivastava, learned counsel for the respondents.

This petition has been filed with the following main prayers:-

"I. Issue an appropriate writ, order or direction quashing the order dated 05.08.2022 passed by respondent no. 4 whereby recovery order has been issued against the petitioner (Annexed as Annexure No. 3) to this writ petition.

II. Issue an appropriate writ, order or direction commanding the respondent no. 5 Board of Directors of the U.P. Power Corporation Limited, Shakti Bhawan Lucknow to expeditiously decide the appeal filed by the petitioner on 01.08.2022 within stipulated period as may be prescribed by this Hon'ble Court after hearing the petitioner."

It is the case of the petitioner that he was appointed as Assistant Engineer in the respondents Department since 2012 and thereafter promoted as Executive Engineer in September, 2017 and joined Electricity Distribution Division in Paschimanchal Vidyut Vitran Nigam Ltd. Meerut while he was posted at Noida with effect from 06.02.2020 to 06.07.2021.

The petitioner released connection on application of one M/s. Projects Pvt. Ltd who were proposing to raise Multistorey Residential building and thus applied for 33 KV feeder from 220/132 KV S/S Sector-129 Noida for giving supply to its project named Lotus Zing, Gh-01A Sector 168 Noida 10,000 KVA electric load on single point in 2011. The application remained pending till such time that the petitioner joined as Executive Engineer in Noida and he being efficient officer released connection. In the meanwhile vide 13th amendment, it was provided in the U.P. Electricity Supply Code that in multi storey buildings the electricity connection which was given as single point should be converted into multi point connection.

The petitioner was chargesheeted he faced the inquiry and the punishment order was passed dismissing him from service and directing a recovery to be made against him on 06.07.2021. The petitioner challenged the said punishment order before the Board of Directors in appeal, pending disposal of his appeal, a recovery order has been issued on 05.08.2022.

Shri Abhishek Srivastava has pointed out that the punishment order dated 06.07.2021 had not only dismissed the petitioner but has also directed recovery for the loss caused to the Corporation and the order dated 05.08.2022 is a consequential order, which only point out the manner of recovery of the loss incurred. The learned counsel for the respondents has pointed out that a recovery at the rate of 8% supervision charges of Rs. 4,66,764 was directed to be made in the punishment order. No order was passed as to how it is to be recovered. In the order impugned dated 05.08.2022 the method of recovery has been mentioned.

Learned counsel appearing for the respondent no. 2 has pointed that the petitioner has availed statutory remedy and petitioner has come before this Court only for staying/quashing of the consequential order. No writ petition for quashing of consequential order is maintainable as held by Supreme Court in the case of **Government Of Maharashtra And Ors vs M/S. Deokar's Distillery 2003 (5) SCC 669**.

This Court is also of the considered opinion that when the writ petition is not maintainable, no interim relief can be granted also while dismissing the same. During the pendency of the statutory appeal before the competent authority, the writ petition has been filed only for staying/quashing of the consequences of the punishment order. It would not be maintainable and no interim relief can be granted as held by Supreme Court in the **State Of Orissa vs Madan Gopal Rungta 1952 SCR 28**. The Constitution Bench of the Supreme Court in Madan Gopal Rungta has been in **Bharat Aluminium Co vs Kaiser Aluminium Technical Services Inc. 2012 (9) SCC 552** where the SC has observed as follows:-

"A right to obtain an interlocutory injunction is not a cause of action. It cannot stand on its own."

The counsel for the petitioner has referred to a Division Bench of the Judgment of the Supreme Court in **Mool Chand Yadav versus Roza Buland Sugar Mills 1980 (3) SCC 484**.

However, in the said case this Court statutory remedy was availed and the application for stay of interim order was also

moved which was rejected. Therefore, Supreme Court observed that if the appeal is decided in favour of the appellant therein and in the meantime the impugned order is given effect to, the appeal itself would become infructuous and the remedy given therein to the appellant would be of no consequence.

Such is not the case as revealed from the facts in the writ petition before this Court. The writ petition is dismissed.

The counsel for the petitioner at this stage is pressed his second prayer made in the writ petition for a direction to the Boards of Director to expeditiously decide the statutory appeal of the petitioner.

In the absence of any statutory right of the petitioner to maintain this writ petition before this Court, this Court cannot grant the prayer as made in relief clause (ii) of the prayer clause.

Order Date :- 23.9.2022

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